

RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk

November 12, 2024

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Bryan Cook (arriving at 6:03 p.m.), Ken Esquibel (via Zoom), Richard Johnson, Pete Laybourn, Dr. Mark Rinne (via Zoom), Scott Roybal, Tom Segrave and Jeff White. Also present: Kris Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Upon request by Mr. Laybourn, and pursuant to support received by Dr. Aldrich and Mr. Cook, items #29(e), 29(f) and 29(g) were removed from the Consent Agenda. Mr. Segrave moved to approve remaining items, seconded by Dr. Aldrich. Motion carried. Voting “yes” – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on October 28, 2024. Motion (per Consent Agenda) carried.

Mayor Collins opened a public hearing to determine whether compliance of annexation conditions required by Wyoming Statute § 15-1-402 exist for about 640 acres of land situate in portions of Sections 4 and 5, T13N, R67W, 6th P.M., Laramie County, Wyoming (also known as North Range Business Park; located northwest of the I-80 and Roundtop Road Interchange). Comment was made by the following member of the governing body: Dr. Aldrich. There being no further comment or input and the purpose of the hearing having been met, Mayor Collins closed the public hearing.

Mayor Collins opened a public hearing to determine whether compliance of annexation conditions required by Wyoming Statute § 15-1-402 exist for the City-initiated annexation of 38 parcels of land totaling 26.67 acres comprised of various tracts of land situate in northeast Cheyenne generally located north of Bevans Street, west of College Drive and south of Dell Range Boulevard. Comment was made by the following member of the governing body Dr. Aldrich. There being no further comment or input and the purpose of the hearing having been met, Mayor Collins closed the public hearing.

Mayor Collins opened a public hearing to determine whether compliance of annexation conditions required by Wyoming Statute § 15-1-402 exist for the City-initiated annexation of 26 parcels of land totaling 38.37 acres comprised of various tracts of land situate in northeast Cheyenne generally located east of Ridge Road, west of Whitney Road and along Dell Range Boulevard. Comments were made by the following members of the governing body: Dr. Aldrich,

Mr. Cook, Mr. Johnson and Mr. Laybourn. There being no further comment or input and the purpose of the hearing having been met, Mayor Collins closed the public hearing.

Mayor Collins opened a public hearing for disposal of real property and land exchange between the City of Cheyenne and Black Hills Energy (properties generally located at the 800 block of W. 18th Street and the 1300 block of W. 24th Street). Comment was made by the following member of the governing body: Dr. Aldrich. There being no further comment or input and the purpose of the hearing having been met, Mayor Collins closed the public hearing.

ORDINANCE – 3rd READING – Amending the Official Zoning Map of the City of Cheyenne adding the Urban Use Overlay District to land located north of East 21st Street and east of and adjacent to Warren Avenue. Reporting for Public Services Committee, Mr. Roybal advised there was no recommendation from the committee. Mr. Roybal moved to approve on third and final reading, seconded by Mr. Johnson. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Laybourn and Mr. Segrave voting “no”. Public comment was made by: Elizabeth Valverde-Bartlett. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Johnson, Mr. Laybourn, Dr. Rinne and Mr. Segrave. (#4591)

ORDINANCE – 3rd READING – Authorizing the Contractor Licensing Board to license and otherwise regulate portable fire extinguisher, hose station equipment and hood system cleaning and maintenance professionals, making conforming amendments, and repealing obsolete provisions of the Municipal Code of the City of Cheyenne, Wyoming. Reporting for Finance Committee, Dr. Aldrich moved to approve on third and final reading, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Cook and Mr. Johnson voting “no”. Comment was made by the following member of the governing body: Mr. Cook. (#4592)

ORDINANCE – 1st READING – Annexing to the City of Cheyenne, Wyoming, tracts of land situate in portions of Sections 4 and 5, T13N, R67W, 6th P.M., Laramie County, Wyoming (also known as ‘North Range Business Park’, located northwest of the I-80 and Roundtop Road interchange) – referred to Public Services Committee. (Sponsor – Mr. Roybal)

ORDINANCE – 1st READING – Amending the Official Zoning Map of the City of Cheyenne establishing the zoning classification of LI Light Industrial and BP Business Park for tracts of land being annexed to the City situate in portions of Sections 4 and 5, T13N, R67W, 6th P.M., Laramie County, Wyoming (also known as ‘North Range Business Park’, located northwest of the I-80 and Roundtop Road interchange) – referred to Public Services Committee. (Sponsor – Mr. Roybal)

ORDINANCE – 1st READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from AG Agricultural and HI Heavy Industrial to AG Agricultural for land located south of Campstool Rd and north of Interstate 80 – referred to Public Services Committee. (Sponsor – Mr. Roybal)

ORDINANCE – 1st READING – Annexing to the City of Cheyenne, Wyoming, various tracts of land completely surrounded by current City limits situate in northeast Cheyenne generally located north of Bevans Street, west of College Drive and south of Dell Range Boulevard – referred to Public Services Committee. (Sponsor – Mr. Roybal)

ORDINANCE – 1st READING – Amending the Official Zoning Map of the City of Cheyenne establishing the zoning classification of MR - Medium-Density Residential, HR - High Density Residential, and CB - Community Business for land annexed to the City of Cheyenne generally located north of Bevans Street, west of College Drive, and south of Dell Range Boulevard – referred to Public Services Committee. (Sponsor – Mr. Roybal)

ORDINANCE – 1st READING – Annexing to the City of Cheyenne, Wyoming, various tracts of land completely surrounded by current City limits situate in northeast Cheyenne generally located east of Ridge Road, west of Whitney Road and along Dell Range Boulevard – referred to Public Services Committee. (Sponsor – Mr. Roybal)

ORDINANCE – 1st READING – Amending the Official Zoning Map of the City of Cheyenne establishing the zoning classification of AR - Agricultural Residential, LR Low-Density Residential, MR - Medium-Density Residential, and MUR Mixed-Use Residential for land annexed to the City of Cheyenne generally located east of Ridge Road, west of Whitney Road and along Dell Range Boulevard – referred to Public Services Committee. (Sponsor – Mr. Roybal)

ORDINANCE – 1st READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from P Public and MUR Mixed-Use Residential to MUB Mixed-Use Business for land located northeast of the intersection of Morrie Avenue and East Lincolnway – referred to Public Services Committee. (Sponsor – Mr. Roybal)

ORDINANCE – 1st READING – Amending Section 8.60.080, Non-Compliant Vehicles as a Nuisance, of the Municipal Code of the City of Cheyenne, Wyoming, declaring oversized vehicles as a nuisance, providing for their regulation, clarifying provisions and making conforming amendments – referred to Committee of the Whole. (Sponsors – Dr. Aldrich and Mr. Johnson)

ORDINANCE – 1st READING – Creating Chapter 13.32, Stormwater Runoff Management System, of Title 13, Public Services, of the Municipal Code of the City of Cheyenne, Wyoming, establishing the Stormwater Runoff Management System, imposing a user fee for necessary funding and repealing obsolete provisions – referred to Committee of the Whole. (Sponsor – Mr. Johnson)

ORDINANCE – 1st READING – Specifying the monthly Stormwater Runoff Management System User Fee in accordance with Section 13.32.050 of the Municipal Code of the City of Cheyenne, Wyoming – referred to Committee of the Whole. (Sponsor – Mr. Johnson)

[CA] RESOLUTION – Acknowledging receipt of the Rotary Park Master Plan Report. Motion (per Consent Agenda) carried. (#6436)

[CA] RESOLUTION – Expressing the intent of the Governing Body, repealing and replacing Resolution No. 6127 governing the creation and administration of the Innovation and Entrepreneur Advisory Council. Motion (per Consent Agenda) carried. (#6437)

RESOLUTION – Acknowledging receipt of a petition by the City of Cheyenne Planning Commission to add the UU Urban Use Overlay to an area zoned MUR Mixed-Use Residential Emphasis with frontage on the east side of Warren Avenue between 21st and 22nd Streets, and directing staff to initiate a zoning map amendment pursuant to the petition. Mr. Roybal advised there was no recommendation from Public Services Committee. Mr. Roybal moved to adopt, seconded by Mr. Johnson. Motion failed due to a tie vote. Voting “yes” – Mr. Cook, Mr. Esquibel, Mr. Johnson, Dr. Rinne and Mr. Roybal. Voting “no” – Dr. Aldrich, Mayor Collins, Mr. Laybourn, Mr. Segrave and Mr. White. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins, Mr. Johnson, Dr. Rinne and Mr. Segrave.

RESOLUTION – Directing City staff to research and develop a plan to initiate the process to pave the road on Birch Place between Charles Street and Cheyenne Street and install curb, gutter and sidewalks. Mr. Roybal advised there was no recommendation from Public Services Committee. Mr. Roybal moved to adopt, seconded by Mr. Johnson. Motion failed. Voting “no” – all members of the governing body. Comments were made by the following members of the governing body: Dr. Aldrich and Mr. Johnson.

RESOLUTION – Directing City staff to research and develop a plan to initiate the process to pave the road on Ridge Road between Hillcrest Road and Stevens Drive and install curb, gutter and sidewalks. Mr. Roybal advised there was no recommendation from Public Services Committee. Mr. Roybal moved to adopt, seconded by Mr. Johnson. Motion failed. Voting “no” – all members of the governing body. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins and Mr. Johnson.

[CA] RESOLUTION – Authorizing the City Treasurer to discharge uncollectible debts pursuant to Wyoming Statute § 16-4-502 – referred to Finance Committee. (Sponsor – Dr. Aldrich)

[CA] RESOLUTION – Certifying Planning Commission action amending the Future Land Use maps of PlanCheyenne changing the land use category from Open Space and Parks to Mixed-Use Commercial for property generally located northeast of the intersection of Morrie Avenue and East Lincolnway – referred to Public Services Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Directing City staff to evaluate and determine an effective drainage plan for the intersection of Bevans Street and Wills Road and the adjacent areas – referred to Public Services Committee. (Sponsor – Mr. Johnson)

[CA] RESOLUTION – By the Governing Body designating a Paid On-Street Parking District for Downtown Cheyenne in accordance with Section 10.60.015 of the Municipal Code of the City of Cheyenne, Wyoming – referred to Finance Committee. (Sponsor – Mr. Johnson)

Professional Services Agreement between the City of Cheyenne, Metropolitan Planning Organization (MPO), and Kimley-Horn and Associates, Inc., for an update of the MPO Long-Range Metropolitan Transportation Plan (MTP) (MPO Fund). Dr. Aldrich moved to approve in an amount not to exceed \$199,841.82, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Cook voting “no”. Comments were made by the following members of the governing body: Mayor Collins and Mr. Johnson. (#8079)

[CA] Grant of Utility Easement between the City of Cheyenne and the Cheyenne Board of Public Utilities on city owned property situated in the S½ of Section 35, Township 14 North, Range 66 West of the 6th P.M., Laramie County. Motion (per Consent Agenda) carried. (#8080)

[CA] Memorandum of Understanding between the City of Cheyenne and the National Forest Foundation to establish roles and responsibilities as a subrecipient of the US Endowment for Forestry and Communities Grant. Motion (per Consent Agenda) carried (in an amount not to exceed \$110,000.00). (#8081)

[CA] Memorandum of Understanding between the City of Cheyenne and the World Resources Institute to establish roles and responsibilities as a subrecipient of the US Endowment for Forestry and Communities Grant. Motion (per Consent Agenda) carried (in an amount not to exceed \$45,000.00). (#8082)

Agreement between the City of Cheyenne and Safe Harbor to provide a safe and secure environment to families who have been affected by abuse (General Fund). Dr. Aldrich moved to approve in an amount not to exceed \$20,000.00, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body. Public comment was made by: Lynn Storey-Huyler, Executive Director, Safe Harbor. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins, Mr. Cook and Mr. Laybourn. (#8083)

Agreement between the City of Cheyenne and The Cheyenne Housing Authority to provide supportive Senior Services (General Fund). Dr. Aldrich moved to approve in an amount not to exceed \$100,000.00, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body. Public comment was made by: Erin LeBlanc, Director, Senior Services. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Laybourn, Mr. Roybal and Mr. White. (#8084)

Agreement between the City of Cheyenne and Volunteers of America Northern Rockies, Alcohol Receiving Center, to provide alcohol and drug detoxification services (General Fund). Dr. Aldrich moved to approve in an amount not to exceed \$136,875.00, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body. Public comment was made by: Heidi McNeil, Volunteers of America Northern Rockies and Brandon Swain. Comments were made by the following members of the governing body: Dr. Aldrich and Mr. Laybourn. (#8085)

[CA] Telecommunications Right-of-Way License and Use Agreement between the City of Cheyenne and Viaero Fiber Networks, LLC for the installation and operation of facilities. (Revenue to City). Motion (per Consent Agenda) carried. (#8086)

Agreement for the purchase, sale and exchange of lands between the City of Cheyenne and Black Hills Energy for exchange of real property, 0.77 acres, from the City to Black Hills Energy and 0.85 acres, from Black Hills Energy to the City, both having appraised values of \$275,000.00 and \$445,000.00, respectively (properties generally located at 108 W. 18th Street and the 1300 block of W. 24th Street) (2017 Specific Purpose Option Tax). Dr. Aldrich moved to approve in an amount not to exceed \$170,000.00, seconded by Mr. White. Dr. Aldrich moved to amend by substitute memo dated November 4, 2024, seconded by Mr. White. Motion to amend by substitute memo carried. Voting “yes” – all members of the governing body. Main motion as amended by substitute memo carried. Voting “yes” – all members of the governing body. (#8087)

Utility Easement Agreement between the City of Cheyenne and the Cheyenne Light, Fuel and Power Company, doing business as Black Hills Energy, to maintain, operate, remove, and replace utility infrastructure (Revenue to City). Dr. Aldrich advised the item was heard under other items for the agenda at the November 4, 2024 Finance Committee meeting, therefore, provisions of Title 2 of City Code had been met. Dr. Aldrich moved to approve in the amount of \$10.00, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body. (#8088)

[CA] Agreement between the City of Cheyenne and the Wyoming Office of Homeland Security to support expenses and equipment costs for the Cheyenne Fire Rescue RERT7 Team through the State Homeland Security Program Fiscal Year 2024 (WOHS FEMA SHSP Grant FY24) – referred to Finance Committee.

[CA] Public Facility and Circulation Easement Agreement between the City of Cheyenne and Magic City Enterprises Inc. regarding access to the properties between 1780 and 1800 Westland Road (FTA Federal Grant) – referred to Finance Committee.

[CA] Contract Modification #2 to Contract #7480 between the City of Cheyenne and Veolia ES Technical Solutions for Hazardous Waste Disposal Services through January 31, 2026 (Solid Waste Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$200,000.00). (#7480)

[CA] Contract Modification #2 to Contract #7462 between the City of Cheyenne and Onsite Electronics Recycling, LLC, d/b/a I.T. Refresh for Electronics Recycling Services through January 31, 2026 (Solid Waste Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$200,000.00). (#7462)

Contract Modification #1 Contract #8057 between the City of Cheyenne and Orion Environmental In., for additional abatement work for the Cheyenne Railcar Project, Bid Package No. 1, Asbestos and Lead Paint Abatement Project (2021 Specific Purpose Option Tax Fund, General Fund Reserves & EDA Grant 0579-06167). Dr. Aldrich moved to approve in an amount not to exceed \$91,846.00, seconded by Mr. Johnson. Dr. Aldrich moved to amend by substitute dated October 30, 2024, seconded by Mr. White. Motion to amend by substitute carried. Voting “yes” – all members of the governing body. Main motion, as amended by substitute carried. Voting “yes” – all members of the governing body with the exception of Dr. Aldrich and Mr. Laybourn voting “no”. Comments were made by the following members of the governing body: Dr. Aldrich and Mr. Laybourn. (#8057)

[CA] Consideration of Bid #E-5-25 for mobile clam shell style laptops and docking stations for the IT Division. (2019-2022 & 2023-2026 Optional 1% Sales Tax Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$78,997.44).

[CA] Consideration of Bid #E-4-25 for (3) Fire Apparatus for the City of Cheyenne, Cheyenne Fire Rescue Department (Future Ballot Specific Purpose Option Tax Fund) – referred to Finance Committee.

[CA] Consideration to Purchase between the City of Cheyenne and Flock Group Inc., d/b/a Flock Safety, for the purchase of Flock Safety License Plate Readers and Flock OS Software for the City of Cheyenne Police Department (ARPA Grant) – referred to Finance Committee.

Governing body comment was made by Mr. Johnson on the Voucher Report as presented.

Public comment was made by the following under Other Business: Brian Deurloo, Frog Creek Partners, Alan Sheldon and Brandon Swain.

The following members of the governing body made comments under Other Business: Dr. Aldrich and Mr. Laybourn.

Mr. Roybal moved to meet in executive session pursuant to Wyoming Statute §16-4-405(a)(vii), seconded by Dr. Aldrich. Motion carried. Voting “yes” – all members of the governing body. Mayor Collins announced members would meet in executive session, not open to the public and stated there would be no action taken by the governing body as a result of the executive session, and that the regular City Council meeting would officially conclude at the close of the executive session. The following staff members were in attendance: Kris Jones, City Clerk; Amber Ash, Mayor’s Chief of Staff; Stefanie Boster, City Attorney; Tom Cobb, City Engineer; Craig LaVoy, Public Works Deputy Director; Jean Anderson-Shrednik, Greenway and Parks Planner; Seth Lloyd, Planning & Development and Charles Bloom, Planning & Development Director. [Clerk’s note: Mr. Esquibel was not present during executive session].

There being no further business to come before the governing body, the meeting was officially adjourned at 8:04 p.m.

Submitted by,

Kris Jones,
City Clerk

This notice is available in alternative, accessible formats upon request.

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